IN THE DISTRICT COURT HELD AT AKIM ODA ON 7TH APRIL, 2025 BEFORE HER WORSHIP ADELINE OWUSUA ASANTE (MS.) SITTING AS THE DISTRICT MAGISTRATE

B7/6/24

THE REPUBLIC

VRS

EMMANUEL SAKYI

JUDGMENT

Background

The Accused herein was arraigned before this Court on 8th November 2023 and has been charged with the offence of Stealing contrary to section 124 (1) of the Criminal Offences Act, 1960 (Act 29).

The facts in support of the charge as presented by prosecution are that; the Complainant, a commercial driver is resident at Asante Mampong Beposo. On 3rd November 2023, complainant transported some church members of Salvation Army Church from Asante Mampong to Oda to attend funeral with Toyota Hiace passenger vehicle with registration No. AS 4038-15 owned by Boamah Michael.

On their arrival, he parked the vehicle on a section of the room in front of Emmanuel Presbyterian Church waiting to transport the church members back to Asante Mampong after church service the following day and thus went to a nearby house to rest. On 5th November 2023 at about 4:00am, he went to the location where he had

parked the vehicle but detected the theft of the said vehicle. He then reported the matte to the Police and investigation was commenced immediately.

The complainant also reported the incident to his car owner who was by then driving another car from Asante Mampong to Anyinam. When the car reached a section of the road after Konongo, he spotted the stolen vehicle with three men on board including the driver coming from the opposite direction. He quickly made a U-Turn and followed the stolen vehicle.

On reaching a section of the road in front of Konongo GCB Bank, the driver in charge the stolen vehicle stopped due to traffic. The owner alighted from his car, rushed to open the driver's side door of the stolen vehicle and attempted to pullout accused whom he found driving the car. The accused drove recklessly and hit the car owner onto the opposite lane.

He sustained inquired and shouted for help. Others at the scene chased the stolen vehicle with their cars and motor bikes. The accused person in top speed turned to a left side junction at Konongo lorry station and the clutch plate of the vehicle got damaged and because of that the vehicle could no longer move.

The accused and his accomplices quickly alighted from the stolen vehicle and took to their heels. A good samaritan managed to knock down the accused with his motorbike and he was arrested however his accomplices managed to escape.

Thereafter he was handed over to the Konongo Police Station and later together with the vehicle he was handed over to the Akim Oda Police where he was charged accordingly with the offence after investigations had closed.

The accused pleaded Not Guilty to the charge after it had been read and explained to him in the Twi Language.

Burden of Proof

A fundamental principle of our criminal justice system is that a person accused of a crime is presumed innocent until he has pleaded guilty or proven guilty. It is trite learning that the prosecution bears the burden to prove the guilt the accused person beyond reasonable doubt. In ***Gligah & Attiso v The Republic [2010] SCGLR 870*** the SC held as follows;

"Under Article 19 (2) (c) of the 1992 Constitution, everyone charged with the criminal offence was presumed innocent until contrary is proved. In other words, whenever an accused person was arraigned before any court in any criminal trial, it was the duty of the prosecution to prove the essential ingredients of the offence charged against the accused person beyond reasonable doubt. The burden of proof was therefore on the prosecution and it was only after a prima facie case had been established by the prosecution that the accused person would be called upon to give his side of the story".

The burden on the accused person, when called upon to enter his defence is to raise a reasonable doubt in the case of the prosecution. The standard of proof for the defence is proof on the balance of probabilities.

Analysis of Evidence

The accused has been charged with stealing contrary to section 124 (1) of Act 29 which provides that, *"A person who steals commits a second degree felony"*

Three essential elements of the offence of stealing become obvious and they are

1. *That the person charged must have appropriated the thing allegedly stolen*
2. *That the appropriation must have been dishonest*
3. *That the person charged must not be the owner of the thing allegedly stolen.*

*In **Ampah v the Republic [1977]2GLR 171**, Azu Crabbe CJ reiterated the elements of stealing as follows "…to establish the offence the prosecution are required to prove the three elements of (i) dishonesty; (ii) appropriation; and (iii) property belonging to another person.* Thus, a person cannot be guilty of stealing unless these elements have been proved.

To prove its case, Prosecution called three (3) witnesses namely Agor Benjamin, Bismark Appiah and G/L/Corporal Gyabaah Sebastian, who all relied on their witness statements filed on 1st June 2022.

PW1, Yaw Wiredu, the Complainant herein, his testified by relying on his Witness Statement dated 21st November 2023. His testimony was a summation of the facts given by prosecution.

Pw2, Michael Boamah, he testified that he received a call from the driver in charge of his car on 5th November 2023 at about 6.30am that thieves had stolen the vehicle. He drove few meters away from Konongo Township and spotted the stolen vehicle with three (3) men on board including the accused coming from the opposite direction and he quickly made a U Turn.

He says he followed the stolen vehicle which was heading towards Kumasi direction. The vehicle stopped due to traffic and as such he alighted and rushed and opened the driver's side door of the vehicle in an attempt to pull out the accused who was driving the vehicle.

The accused drove recklessly hitting him onto the opposite lane and he sustained injuries and shouted for help. Some onlookers in the area chased the vehicle with their cars and motor respectively. The accused drove on top speed turned to a left side junction at Konongo Agriculture Office and the clutch plate of their vehicle got damaged and the car could not move any longer.

The accused and his accomplices got down and took to their heels. A certain motor rider appeared and knocked down the accused and he was arrested.

PW3, is NO.41965 D/Sgt Joshua Martey stationed at the Divisional Police Headquarters, Akim Oda. He testified that on 5th November 20223 at about 6.30 am a case of theft of his Toyota Hiace passenger vehicle with registration number AS 4038-15 owned by one Michael Boamah.

He further testified that on 3rd November 2023 at about 10:00pm, he transported some church members of Salvation Army from Asante Mampong Beposo to Akim Oda for a funeral. He says he parked the vehicle on a section of the road in front of the Emmanuel Presby Church waiting to transport the Church Members back to Asante Mampong Beposo the following Sunday after church service.

In the course of the investigation, Yaw Wiredu called his car owner on phone and informed him about the incident in my presence. After 30 minutes later, he received a phone call from Konongo District Police indicating that with the help of the car owner the of the car owner the stolen vehicle had been intercepted at Konongo township with the accused driving the stolen vehicle and was arrested by some civilians and handed over to the police Without objection from the Accused, he tendered the following;

(1) Investigation Cautioned Statement of Emmanuel Sakyi dated 06/06/2023 marked as Exhibit 'A'
(2) Charged Cautioned Statement of Emmanuel Sakyi dated 06/11/2023 marked as Exhibit 'B'
(3) Photographs of the stolen vehicle- Exhibit C, C1,C2,C3 & C4

*In the case of **Armah vs The State [1961] GLR 136**, the court explained what constituted recent possession depended upon the nature of the property and the circumstances of that particular case; and in the doctrine of stolen property, "recent" relates to the date of stealing. Therefore where it was proved that premises was broken into and property stolen therefrom and that very soon after the breaking the accused was found in possession of that property, it was open to the court to find the accused guilty of the offence. The doctrine requires the*

prosecution to establish that the property which had been recently stolen was found in the possession of the accused who would have to give a satisfactory explanation regarding how he came by same failing which he would be presumed guilty.

It is from the foregoing that the court invited Accused to open his defence. The law is that it is only after a prima facie case has been established by the prosecution that the accused will be called upon to give his side of the story and I must state that the duty of accused at that point will be to raise reasonable doubt about his guilt.

To make his defence, accused elected to give a sworn testimony and called one witness to testify on his behalf. From the onset the Accused had consistently denied stealing the Toyota Hiace vehicle as he claimed he was only a passenger on board until such time that he got down from it and stood by the roadside waiting for a different vehicle to continue his alleged journey to Tarkwa.

In his Charged Cautioned statement also given on 6th November 2023, Exhibit A, the accused relied on his former statement, Exhibit C.

He testified that he on 5th November 2023 he left Kade to Asamankese en route to Suhum to board a car to Tarkwa. He says on reaching Asamankese junction he stopped a vehicle going to Kumasi direction and the said vehicle had four people onboard including the driver. He claims at a certain point a man from nowhere held the driver struggling with him and the driver diverted to the left side of the road and parked the vehicle and the four men bolted away and he also got down and continued his journey.

Whilst standing by the roadside waiting for another vehicle the young man who came to struggle with the driver came to identify him as one of the people who was on board the vehicle and was arrested. He further in his witness statement alleged that the young man who struggled with the driver told the police in charge that he wasn't the driver as the driver was wearing a cap.

This allegation remained unchallenged as Prosecution did not cross examine him on same and neither was this assertion debunked. Nevertheless, no plausible explanation was given by Accused as to how his position shifted from that of a passenger (as alleged by him) to that of being the driver behind the steer at the time of the scuffle with PW2 and the other passersby albeit that none was called upon to testify.

The question I then ask is has the Accused been able to raise reasonable doubt that he was not the one who stole the vehicle? The answer in my humble opinion is No. In fact, AW2, Doris Agyapomma confirm that Accused was hurt with bruises when she saw him. In another vein, accused sought to infer that he did not know how to drive and could possibly not be the one behind the steering wheel of the vehicle. This is what ensued during cross examination of PW2 by Accused;

Q: Have you taught me how to drive?

A: No, my lady

Q: Why is it that I don't know how to drive, you have not taught me and I have not worked with me but you are saying I was the one driving the car.

A: When I met you, I saw you driving and you were the one I tussled with at Konongo.

However, in Accused's evidence in chief at Paragraph 20, he averred that at the police station when his statement was taken he told the police in charge that he was a driver though his driving license was lost.

The facts in the instant suit have proved that the accused dishonestly appropriated the Toyota Hiace with Registration No. AS 4038-15 and hereby finds accused guilty of the offence of stealing and convicts him accordingly.

Conclusion

Having considered that the Accused is a first time offender and his plea in mitigation, a family man, the stolen vehicle having been retrieved by and safely in the custody of the owner, he is hereby sentenced to 400 penalty units in default six (6) months imprisonment. Accused is also to sign a bond to be of good behaviour for twelve (12) months.

(SGD)

ADELINE OWUSUA ASANTE (MS.)

(MAGISTRATE)